

Kishan Bahadur v. Electricity Distribution Division, P.V.V.N.L.

High Court of Judicature at Allahabad · Division Bench · 27 September 2019 · Writ-C No. 63253 of 2009 · **Writ dismissed for want of prosecution; interim stay discharged.**

HEADNOTE

A 2009 writ seeking to stop recovery of an electricity-theft assessment after criminal acquittal was dismissed in 2019 for want of prosecution. The 2009 interlocutory stay of the recovery citation was discharged. The Court did not decide whether Supply Code clause 8.2 required withdrawal of the assessment.

FACTUAL SUMMARY

An FIR was lodged against the petitioner for theft of electricity. He was acquitted by the Chief Judicial Magistrate, Bijnor, on 10 February 2004. Recovery proceedings followed on a recovery citation dated 17 November 2009. On 25 November 2009 a Division Bench stayed that recovery, recording the petitioner's plea that Electricity Supply Code, 2005 clause 8.2(h) required withdrawal of the assessment where theft was not established. After adjournments, the petition was listed peremptorily on 27 September 2019; none appeared for the petitioner.

HOLDING-UNITS

HOLDING-UNIT · OFFTOPIC::procedural-listing

dismissal for want of prosecution

HOLDING

Listed peremptorily, the writ was dismissed for want of prosecution when none appeared for the petitioner. Any interim order, including the 25 November 2009 stay of recovery on the theft-assessment citation, stood discharged. No finding was recorded on the Supply Code. ¶ 4

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — WHETHER ACQUITTAL OF ELECTRICITY THEFT REQUIRED WITHDRAWAL OF THE ASSESSMENT UNDER SUPPLY CODE CLAUSE 8.2

The 2009 stay recorded the petitioner's reliance on clause 8.2(h) (catalog analogue 8.2(x) for acquittal-withdrawal). That plea was interlocutory only; the 2019 dismissal decided nothing on the Code. ¶ 1